

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JULY 14, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, July 14, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, July 13, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086393 LVNV Funding LLC, v. Kumansky, Alex

The motion for entry of judgment is dropped from calendar as no moving papers were filed noticing this date. This may have been a duplicative reservation, as a motion for entry of judgment was noticed for June 30, 2026 and that hearing was continued to **August 11, 2026 at 8:30 a.m. in Department 32**. The August 11th hearing remains as scheduled.

2. M-CV-0094212 Scoubes, Jonas v. American Express Co.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant's motion to compel arbitration and stay action

Defendant moves to compel arbitration and stay the action. Plaintiff filed an untimely opposition. In the court's discretion, it will consider plaintiff's filing.

A request to compel arbitration under the Federal Arbitration Act (FAA) may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24.) The arbitration statutes

evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Defendant met its initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. (See Decl. Hamilton, Exh. A at 12-13.)

Plaintiff argues defendant's motion should be denied since the arbitration clause was never agreed to extend to violations of California's Rosenthal Act and is unconscionable. Plaintiff contends the arbitration clause is oppressive and does not guarantee plaintiff's rights to conduct discovery. Plaintiff contends arbitration removes plaintiff's right to a jury trial and the clause seeks to alter the cost-shifting element of claims under California's Rosenthal Fair Debt Collection Practices Act. In support of plaintiff's arguments, plaintiff cites, *inter alia*, *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111. In *OTO, L.L.C.*, the Supreme Court of California made the following findings regarding the arbitration agreement at issue:

The agreement is a paragon of prolixity, only slightly more than a page long but written in an extremely small font. The single dense paragraph covering arbitration requires 51 lines. As the Court of Appeal noted, the text is "visually impenetrable" and "challenge[s] the limits of legibility."

The substance of the agreement is similarly opaque. The sentences are complex, filled with statutory references and legal jargon. The second sentence alone is 12 lines long. The arbitration paragraph refers to: the California Fair Employment and Housing Act; (Gov. Code, § 12900 et seq.); title VII of the Civil Rights Act of 1964 (Pub. L. No. ;88-352 (July 2, 1964) 78 Stat. 241); other unspecified "local, state or federal laws or regulations;" the National Labor Relations Act; (29 U.S.C. § 151 et seq.); the California Workers' Compensation Act; "California Small Claims" actions; the Department of Fair Employment and Housing; the Employment Development Department; the "Equal Opportunity Commission"; the federal and California arbitration acts; and six different sections of California's Civil Code and Code of Civil Procedure. A layperson trying to navigate this block text, printed in tiny font, would not have an easy journey.

OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 128.

In this case, the agreement has clear, bold font language and is a credit card agreement rather than an employment contract, as in *OTO, L.L.C.* On page six of the credit card agreement contains a heading which states:

Governing law	Utah law and federal law govern this Agreement and your Account. They govern without regard to internal principles of conflicts of law. We are located in Utah. We hold your Account in Utah. We entered into this Agreement with you in Utah.
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(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

Below this section is a large font, bold print and underlined heading that reads: **Claims Resolution**. Beneath this heading the agreement contains three columns. In the first column, toward the middle of the page, the option to reject the arbitration clause is in bold print. Below that language, the agreement states what claims are covered under the arbitration clause:

Most customer concerns can be resolved by calling our Customer Service Department at the number listed on the back of your card. In the event Customer Service is unable to resolve a complaint to your satisfaction, this section explains how claims can be resolved through mediation, arbitration or litigation. It includes an arbitration provision. **You may reject the arbitration provision by sending us written notice within 45 days after your first card purchase. See *Your Right to Reject Arbitration* below.**

For this section, ***you*** and ***us*** includes any corporate parents, subsidiaries, affiliates or related persons or entities. ***Claim*** means any current or future claim, dispute or controversy relating to your Account(s), this Agreement, or any agreement or relationship you have or had with us, except for the validity, enforceability or scope of the Arbitration provision. ***Claim*** includes but is not limited to: (1) initial claims, counterclaims, crossclaims and third-party claims; (2) claims based upon contract, tort, fraud, statute, regulation, common law and equity; (3) claims by or against any third party using

or providing any product, service or benefit in connection with any account; and (4) claims that arise from or relate to (a) any account created under any of the agreements, or any balances on any such account, (b) advertisements, promotions or statements related to any accounts, goods or services financed under any accounts or terms of financing, (c) benefits and services related to card membership (including fee-based or free benefit programs, enrollment services and rewards programs) and (d) your application for any account. You may not sell, assign or transfer a claim.

(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

In the middle column, halfway down the page, the language regarding the arbitration clause is in bold print:

Arbitration

You or we may elect to resolve any claim by individual arbitration. Claims are decided by a neutral arbitrator.

If arbitration is chosen by any party, neither you nor we will have the right to litigate that claim in court or have a jury trial on that claim. Further, you and we will not have the right to participate in a representative capacity or as a member of any class pertaining to any claim subject to arbitration. Arbitration procedures are generally simpler than the rules that apply in court, and discovery is more limited.

(See Decl. Hamilton, Exh. A at 12) (emphasis in original.)

Plaintiff alleges that American Express violated the California's Rosenthal Fair Debt Collection Practices Act in connection with debt collection efforts, relating to collecting a debt pursuant to the account and cardmember agreement with American Express. The arbitration clause encompasses plaintiff's claims arising out of American Express's alleged debt collection efforts. See, e.g., *Simula, Inc. v. Autoliv, Inc.*, 175 F.3d 716, 720-21 (9th Cir. 1999) (holding that a clause requiring arbitration of any dispute "arising in connection with" reached every dispute between the parties having a significant relationship to the contract and all disputes having their origin or genesis in the contract).

Therefore, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed, pending completion of arbitration.

The court vacates pending dates, including the trial scheduled for September 2, 2026, and schedules this matter for an Order to Show Cause hearing regarding the status of arbitration on **March 9, 2027, at 9:00 a.m. in Department 32.**

3. S-CV-0044551 Duncan, Royce D al v. Mason, Thomas A

This tentative ruling is issued by the **Honorable Todd D. Irby.**

Final Accounting

Appearance of the parties is required on **July 14, 2026 at 8:30 a.m. in Department 33.**

4. S-CV-0049842 Garcia, Fernando v. Hospitality Team Members

Defendant's Motion to Compel Further Responses to Special Interrogatories, Set One

Defendant moves to compel further responses to special interrogatories, set one, nos. 11, 16, and 22.

Special interrogatory no. 11 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant meal break. Special interrogatory no. 16 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant rest break. Special interrogatory no. 22 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant wage statement.

In response to each of the subject interrogatories, plaintiff references Code of Civil Procedure section 2030.230, and refers to the complaint, the PAGA letter to the LWDA, defendant's business records, payroll and time records, wage statements, and defendant's policies and procedures.

Code of Civil Procedure section 2030.230 applies where responding to the interrogatory would necessitate making a compilation or summary of information, no such compilation presently exists, and the burden or expense of preparing or making the compilation would be substantially the same for the interrogating party as for the responding party. A response which references this statute must describe the records with sufficient particularity. (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 815-817.) Plaintiff's reference to Code of Civil Procedure section 2030.230 is not supported, and the response does not sufficiently describe the records.

Plaintiff's responses to the subject interrogatories are otherwise non-responsive.

Defendant's motion to compel further responses to special interrogatories, set one, nos. 11, 16, and 22 is granted. Plaintiff shall serve further responses within 10 days of service of notice of entry of the court's order.

Defendant's request for sanctions is denied as the notice of motion fails to identify every person, party, and/or attorney against whom the sanction is sought. Code Civ. Proc. § 2023.040. Plaintiff's request for sanctions is likewise denied.

Defendant's Motion to Compel Further Responses to Requests for Production of Documents, Set One

Defendant moves to compel further responses and production of documents as to requests for production, set one, nos. 11, 16-18, and 29-32.

Defendant's motion to compel further responses is denied as to request nos. 11, 16 and 29. Plaintiff's responses sufficiently comply with the requirements of the Code of Civil Procedure.

Defendant's motion to compel further responses is granted as to request nos. 17, 18, 30, 31, and 32.

Responses to a request for production must include an agreement to comply, a representation of responding party's inability to comply, and/or objections to all or part of the demand. (Code Civ. Proc. § 2031.210.(a).) An agreement to comply must state that the production will be allowed in whole or in part, and that responsive documents in the responding party's possession, custody or control will be produced. (Code Civ. Proc. § 2031.220.) A response stating an inability to comply must state that a diligent and reasonable inquiry has been made in an effort to locate the requested documents, and the reason that the responding party is unable to comply. (Code Civ. Proc. § 2032.230.) To state an objection, the responding party must set forth the specific ground for the objection, and identify with particularity the specific document demanded as to which the objection is made. (Code Civ. Proc. § 2031.240(b).)

In response to request nos. 17, 30, and 31, plaintiff limits his response to cellular phone bills, and does not make clear whether all responsive documents will be produced, or whether any responsive documents will not be produced based on inability. The response to request no. 18 is also limited to cellular phone bills, despite the request seeking bank records. The response to request no. 32 also does not make clear whether all responsive documents will be produced, or whether any responsive documents will not be produced based on inability.

Defendant's motion to compel further responses to requests for production, set one, nos. 17, 18, 30, 31, and 32 is granted. Plaintiff shall serve further responses within 10 days of service of notice of entry of the court's order. Plaintiff shall serve responsive documents within 20 days of service of notice of entry of the court's order.

Defendant's request for sanctions is denied as the notice of motion fails to identify every person, party, and/or attorney against whom the sanction is sought. Code Civ. Proc. § 2023.040. Plaintiff's request for sanctions is likewise denied.

5. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Attorneys' Fees and to Fix Prejudgment Interest

Plaintiff moves for an award of attorneys' fees against defendants in the amount of \$16,290 and for an order fixing prejudgment interest at \$31,379.42. Defendants oppose the motion.

Defendants' objections to portions of the declaration of counsel Young are overruled.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written commercial lease agreement between the parties' predecessors in interest dated November 5, 2005 which includes an attorneys' fees provision:

22. ATTORNEY'S FEES. In case suit shall be brought for any breach of this Lease including without limitation unlawful detainer of the premises or for the recovery of any rent due under the provisions of this Lease, or because of the breach of any covenant herein contained on the part of Lessee to be kept or performed, the prevailing party shall be entitled to a reasonable attorney's fee which shall be fixed by the Court, or in any compromise or settlement such attorney's fee shall be deemed to have accrued on the commencement of such action and shall be paid whether or not

(Pltf's Exh. 2, ¶ 22.)

Plaintiff moved for summary judgment, which the court granted on December 8, 2025. (Ruling on submitted matter, Dec. 8, 2025.) On July 8, 2026, the court entered judgment for plaintiff as against defendant. Plaintiff is the prevailing party in this action. A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Plaintiff is therefore entitled to recover reasonable attorneys' fees.

The court must next address whether the \$16,290 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Kenrick Young. Counsel declares he has charged an hourly rate of \$220 to \$300 during the pendency of this case. However, a review of Exhibit 3 to the declaration of counsel Young reveals other attorneys who worked on the case—Dirk Chilcote and Nicholas Lazzarini, who have

been members of the State Bar since 2015 and 2008 respectively, according to publicly available information on the California State Bar’s website—as well as a paralegal identified only as “JS.” The fees requested for the paralegal are denied as no information is provided as to their training and experience. The court finds the hourly attorney rates of \$220 through \$300 to be reasonable for the attorneys given the length of time these individuals have been members of the California State Bar.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Young and Exhibit 3 thereto, which supports 62.7 hours incurred on this litigation. The court observes only one instance where the itemized time is insufficiently explained and a reduction of 0.2 hours is required, in addition to a reduction of 4 hours of paralegal time for the reasons discussed above. The court awards attorneys’ fees in the amount of \$15,830.

Plaintiff also requests prejudgment interest in the amount of \$31,379.42. While defendants point out that typically, prejudgment interest is part of the judgment rather than sought by way of motion, defendants point to no law so requiring. Moreover, when the court issued the judgment on July 8, 2026, it purposefully struck any interest to address it by way of this motion to afford defendants the opportunity to be heard. Accordingly, the court will reach the issue. “A person who is entitled to recover damages certain, *or capable of being made certain by calculation*, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day[.]” (Civ. Code, § 3287, subd. (a), emphasis added.) The evidence plaintiff presented in support of the motion for summary judgment included that default occurred on or about June 1, 2023. The lease agreement between the parties’ predecessors in interest dated November 5, 2005 specifies that the lessor has several rights in response to a lessee’s default, including the right to recover from lessee the amount of unpaid rent for the balance of the term. (Pltf’s Exh. 2, ¶ 17.) Accordingly, the damages were “capable of being made certain by calculation” at the time of the breach and Section 3287(a) applies. As to the rate of interest, no rate of interest is specified in the agreement of the parties; accordingly, interest shall accrue at a rate of 10 percent per annum following breach. (Civ. Code, § 3289, subd. (b).) Plaintiff is therefore entitled to prejudgment interest at the rate of 10% from the date of default (June 1, 2023) to the date judgment was entered (July 8, 2026). The court awards prejudgment interest in the amount of \$37,741.91.

While costs were not raised in this motion, a memorandum of costs was filed and served on February 27, 2026 requesting \$935 for filing fees and motion fees. A review of the court’s file reveals no motion to tax costs has been filed.

Based on the foregoing, the motion for attorneys’ fees is granted. Plaintiff is awarded attorneys’ fees of \$15,830 against defendants. Prejudgment interest is awarded in the amount of \$37,741.91. Plaintiff shall forthwith submit an amended proposed judgment consistent with this ruling.

6. **S-CV-0050979 Pearson, James v. Kaiser Foundation Hospitals**

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. ("Kaiser defendants") move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

Evidentiary Rulings

Preliminarily, the court observes the motion appears to be supported by insufficient notice, as it was filed and served with 81 days' notice without accounting for two additional court days for electronic service. (Code Civ. Proc., §§ 437c, subd. (a)(2); 1010.6(a)(2)(B).) In light of the parties' June 30, 2026 stipulation that electronic service constitutes personal service for the purpose of this motion, there is no defect in notice and the court will reach the merits of the motion.

Defendants' request for judicial notice is granted. As to exhibit F, the court takes judicial notice of the fact of filing but not of the arguments contained therein.

Plaintiff's request for judicial notice is granted.

Plaintiff's objections, submitted only in the responsive separate statement, are overruled for failure to comply with rule 3.1354(b) of the California Rules of Court.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Kaiser defendants present evidence that plaintiff lost his leg as a child and uses a prosthetic leg which requires periodic charging using a three-foot long cord. (SSUMF Nos. 1–4.) When plaintiff is not using the prosthetic leg, he relies on crutches or ambulates by a hop to get very short distances. (SSUMF No. 5.) On May 8, 2020, plaintiff went to the Kaiser Permanente Roseville Medical Center because he was having thoughts of self-harm. (SSUMF No. 6.) Plaintiff was admitted and escorted to a patient room in the emergency department, a security guard was posted outside of his room, and his personal belongings were taken from him except for his prosthetic leg. (SSUMF Nos. 7–9, 12.) In the evening, plaintiff told the security guard his prosthetic leg needed to be charged; as the three-foot charging cord could not be left in plaintiff’s room for safety concerns, a nurse collected his leg from him. (SSUMF Nos. 13–15.) Plaintiff told the nurse he needed his leg to walk. (SSUMF No. 17.) Plaintiff went to sleep and during the night, plaintiff twice had to use the restroom, located in the hallway, while his prosthetic leg was still charging. (SSUMF Nos. 10, 18, 21.) Plaintiff hopped to the doorway and told the security guard he needed to use the restroom; the security guard responded, “go ahead.” (SSUMF Nos. 22–23.) Each time, plaintiff hopped approximately ten hops to reach the restroom and then hopped back. (SSUMF Nos. 27–29.) The only individuals who observed plaintiff hopping to the restroom and back were two different security guards. (SSUMF Nos. 29, 31.) Plaintiff did not ask anyone for his prosthetic leg or another mobility device, did not ask anyone for assistance, or otherwise voice any difficulties accessing the restroom. (SSUMF Nos. 24–25, 32–33.) The fully charged prosthetic leg was returned to plaintiff the next morning. (SSUMF No. 34.) Plaintiff had no difficulty accessing any other part of the Kaiser Permanente Roseville Medical Center when he had his prosthetic leg and plaintiff does not challenge the physical structure of the facility. (SSUMF Nos. 35–36.)

To prevail on a violation of Title III of the ADA, the first cause of action, plaintiff must show (1) he has a disability, (2) defendant is a private entity that owns, leases, or operates a place of public accommodation, (3) defendant employed a discriminatory policy or practice, and (4) defendant discriminated against the plaintiff based upon the plaintiff’s disability by (a) failing to make a requested reasonable modification that was (b) necessary to accommodate the plaintiff’s disability. (*Karczewski v. DCH Mission Valley LLC* (9th Cir. 2017) 862 F.3d 1006, 1010.) A plaintiff must generally request the accommodation. (*Ibid.*) Here, while plaintiff told a nurse he needed his leg to walk (SSUMF No. 17), defendants’ evidence shows he did not request an accommodation to the security guards or nurses at Kaiser Roseville Medical Center during his stay. (SSUMF Nos. 23–25, 32–33.)

Plaintiff argues because his disability is “open, obvious, and apparent,” he is not required to request an accommodation. (*Windham v. Harris Cty.* (5th Cir. 2017) 875 F.3d 229, 237.) This court has considered this argument before, first at the pleading stage (Ruling on submitted matter, Nov. 21, 2024) and then to deny plaintiff’s motion for summary adjudication (Ruling on submitted matter, Dec. 19, 2025). As this court previously pointed out, plaintiff had not provided any authority showing the limited “open, obvious, and apparent” exception applies to Title III claims such as his. Now, plaintiff presents three Title III cases he argues show the “open, obvious, and apparent” exception apply in

this context: *Brady v. Evangelical Lutheran Good Samaritan Society* (E.D. Tex. Oct. 2, 2023) 2023 WL 6393882, *Muse v. Home Depot United States* (Dist. Haw. Nov. 7, 2006) 2006 U.S. Dist. LEXIS 110916, and *Asselin v. Shawnee Mission Med. Ctr.* (D. Kan. 1995) 894 F.Supp. 1479. The *Asselin* case does not apply here because it involves a plaintiff who repeatedly requested an accommodation and the opinion makes no reference to the “open, obvious, and apparent” exception. The other two cases are “citable as persuasive, although not precedential, authority.” (*Haligowski v. Super. Court* (2011) 200 Cal.App.4th 983, fn. 4, internal quotation marks and citations omitted.) The court declines to rely on persuasive authority to extend to Title III cases the limited “open, obvious, and apparent” exception without any mandatory, precedential authority. As plaintiff has provided none, this argument fails. Plaintiff also urges the court to consider the legislative history behind Title III. However, the statutory language is not ambiguous so as to trigger such an analysis. Based on the foregoing, defendants met their initial burden as to the first cause of action.

To establish a violation of the California Disabled Persons Act, the second cause of action, a plaintiff must prove either that the ADA was violated or that plaintiff was denied equal rights of access to public places and places of public accommodation. (*Jankey v. Lee* (2012) 55 Cal.4th 1038, 1044–45; Civ. Code, § 54.1, subd. (d).) To the extent plaintiff’s claim under the California Disabled Persons Act relies on a violation of the ADA, defendants have met their initial burden for the same reasons as described above. (SSUMF Nos. 23–25, 32–33.) Moreover, defendants’ evidence shows plaintiff encountered no architectural barriers nor was he denied equal rights of access to the Kaiser Permanente Roseville Medical Center as enjoyed by non-disabled members of the public. (SSUMF Nos. 35–36.) Defendants have met their initial burden as to the second cause of action.

To establish a violation of the Unruh Civil Rights Act, the third cause of action, a plaintiff must prove either that the ADA was violated or intentional discrimination. (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661.) To the extent plaintiff’s claim under the Unruh Civil Rights Act relies on a violation of the ADA, defendants have met their initial burden for the same reasons as described above. (SSUMF Nos. 23–25, 32–33.) To the extent plaintiff’s claim is based on intentional discrimination, there are no such allegations in the second amended complaint and the evidence does not support intentional discrimination. Defendants have met their initial burden as to the third cause of action.

Accordingly, Kaiser defendants sufficiently met their initial burden of showing entitlement to judgment and the burden shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a responsive separate statement of material facts and a separate statement of three additional material facts. Despite these efforts, plaintiff’s evidence falls short of his burden of showing any disputed material facts.

Based on the foregoing, Kaiser defendants’ motion for summary judgment is granted.

7. S-CV-0051033 Villacana, Ferman Ochoa v. Rua & Son Mechanical

Final Account

On September 30, 2025, the court granted preliminary approval of the class action and PAGA settlement. On March 10, 2026, the court granted final approval of the class action and PAGA settlement. The court issued a final judgment on April 3, 2026, which set this hearing for a final accounting.

The court has carefully reviewed the declaration of Makenna Snow filed June 18, 2026, together with the entire court file. The final accounting is approved. No further hearings are scheduled.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard Noah

Cook defendants' motion for protective order

The Cook defendants' motion for protective order is continued to **August 4, 2026, at 8:30 a.m. in Department 32.**

9. S-CV-0052372 Baddawi, Samira vs. Mi Pueblito Taqueria et al

Defendants' Joint Motion to Compel Neuropsychological Examination of Plaintiff

Defendants Mi Pueblito Taqueria, Lupe Ruiz Jr., and Restaurant Depot, LLC, move to compel a neuropsychological examination of plaintiff.

Plaintiff's objections to the declaration of Dr. Kimberly Miller are overruled. Plaintiff's procedural objections to the form of the motion and sufficiency of notice are overruled. Defendants are admonished for their failure to comply with an order of the court and failure to provide proper notice. However, as plaintiff has filed a substantive opposition on the merits and does not demonstrate prejudice, any notice issue is waived, and the court will reach the merits.

Plaintiff alleges traumatic brain injury and post-concussive cognitive symptoms arising an October 9, 2023 incident, after being struck by a U-boat cart at defendants' restaurant. (Pl. Compl. ¶ 9; Pl. Opp'n at 2; Defs. Mot. at 1.) Defendants seek a neuropsychological examination by Dr. Kimberly Miller. (Daniels Decl., ¶¶ 2, 4; Miller Decl., ¶ 7.) On March 11, 2026, plaintiff agreed to one neuropsychological examination, with certain specified conditions. (Daniels Decl., Exh. 1.)

Defendants served a demand for neuropsychological examination of plaintiff on March 24, 2026. (Daniels Decl., Ex. 2.) In response to the demand, plaintiff raised several objections regarding the broad test menu, the prohibition on plaintiff recording the examination in its entirety, the restriction on raw data and audio access, the duration, the

reference to collateral interviews, and the reference to a cancellation fee. (Daniels Decl., Exhs. 7-8.) This motion followed.

Defendants' motion is granted in part.

Preliminarily, plaintiff does not object to the examination in principle but does object to certain conditions of the examination as set forth in the demand. Plaintiff requests that if the court grants leave for the examination to occur, it modify the conditions which defendants seek to impose, in line with plaintiff's objections.

Plaintiff's request that the court narrow the list of tests identified in the demand and exclude certain identified tests at the outset is denied. Defendants provide the declaration of Dr. Miller, who states that the demand identifies potential tests which may be administered based on a determination made at the time of the examination, and informed by the results of other testing during the examination. Plaintiff offers no contrary evidence which establishes the inappropriateness of this approach, or the identified tests themselves.

Plaintiff's request that plaintiff be permitted to audio record the entirety of the examination is granted. Code of Civil Procedure section 2032.530(a) plainly permits the examinee to record the examination by audio technology. As noted in *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739:

Nothing in the applicable statute suggests that the right of the examiner or examinee is limited to recording only selected parts of the examination.

Further, recording only the examinee's responses would defeat the main purposes of the audiotaping, which are to ensure that the examiner does not overstep the bounds set by the court for the mental examination, that the context of the responses can be judged for purposes of trial, that the examinee's interests are protected (especially since the examinee's counsel ordinarily will not be present), and that any evidence of abuse can be presented to the court.

(*Id.* at 750 (internal footnote and citation omitted).)

Plaintiff's request that the raw test data and audio recording of the examination be produced to plaintiff's counsel is denied. Defendants present substantial evidence that ordering production to counsel, even with a protective order, would be prejudicial and potentially impact or violate the ethical duties and obligations of third parties including Dr. Miller. Plaintiff reserves the right to seek reconsideration of this ruling in the future based on a showing of substantial need.

Plaintiff's request to cap the duration of the examination at eight hours is granted, but is exclusive of breaks and lunch, as the court cannot predict the length of any recesses. Plaintiff's request that the court bar any cancellation fee appears moot given the necessity

of this motion and the noticed examination date having already passed. The court's order does not permit a cancellation fee based on the demand, nor does it bar any future cancellation fees based on actions of the parties which may post-date this ruling. Finally, the court's ruling does not authorize any collateral interviews.

In summary, leave is granted for the neuropsychological examination of plaintiff subject to the parameters noted above. Counsel shall meet and confer in good faith regarding the date of the future examination.

10. S-CV-0053223 Myatt, Wayne T v. BJs Restaurant Inc.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant's motion to compel responses to form interrogatories, set one

Defendant moves for responses to form interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to special interrogatories, set one

Defendant moves for responses to special interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to demand for production of documents, set one

Defendant moves for responses to demand for production of documents, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel response to request for itemization of nature and extent of damages

Defendant moves to compel a response to request for itemization of nature and extent of damages. Defendant notes that a code-compliant response to the subject discovery request was served on March 6, 2026. Defendant's motion to compel a response is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to deem request for admissions, set one, as admitted

Defendant moves deem request for admissions, set one, as admitted. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to deem request for admissions, set one, as admitted is denied as moot. Under 2033.280 (c), it is mandatory that the court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated this motion. Therefore, defendant's request for monetary sanction is granted, in the amount of \$860.

11. S-CV-0053338 Demas, John v. Saetes, Peter

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010. No opposition has been filed.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. At the prior hearing on June 16, 2026, defendant Saetes appeared and stipulated to electronic service for this motion. Moreover, plaintiffs filed proofs of service on June 16, 2026 showing mailed service as well.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written 2014 promissory note, which includes an attorneys' fees provision:

10. Attorneys' Fees. If any action or other proceeding is brought for the enforcement of this Note, or because of an alleged dispute, breach, default or misrepresentation in connection with any of the provisions of this Note, the successful or prevailing party or parties shall be entitled to recover reasonable attorneys' fees and other costs incurred in that action or proceeding, in addition to any other relief to which the party may be entitled.

(Complaint, Exh. A.)

A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Here, after a two-day court trial, the court found in favor of plaintiffs as against defendant Saetes in the total amount of \$1,444,867.55. (Judgment, filed Nov. 5, 2025.) The judgment also specified, "Plaintiffs are the prevailing parties in this action and are entitled to costs of suit. Plaintiffs are also entitled to seek attorneys' fees pursuant to the provisions of the 2014 Promissory Note by noticed motion." (*Id.* at p. 3:4–6.) As this

court has already found, plaintiffs are the prevailing parties and are therefore entitled to recover reasonable attorneys' fees.

The court must next address whether the \$102,492 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, *supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Scott E. Radcliffe and the exhibits thereto. Counsel declares hourly rates ranging from \$450 to \$495, which the court finds to be reasonable. Turning next to the question of whether the number of hours incurred were reasonable, the court has carefully reviewed the declaration of counsel Radcliffe and Exhibit A thereto, which supports 227.7 hours of attorney time incurred in this litigation. The court finds the unchallenged number of hours to be reasonable and awards plaintiffs attorneys' fees in the amount of \$102,492.

As to costs, plaintiffs filed a costs memorandum on November 24, 2025 requesting costs in the amount of \$8,706.42. Plaintiffs filed the accompanying costs worksheet on December 10, 2025. No motion to tax costs was timely filed. (Cal. Rules of Court, rule 3.1700.) Plaintiffs are awarded costs in the amount of \$8,706.42.

As to post-judgment interest, plaintiffs request post-judgment interest accrued since November 7, 2025. Plaintiffs rely on Code of Civil Procedure section 685.010, which provides interest accrues at a rate of 10 percent per annum on the principal amount of an unsatisfied money judgment. As interest accrues automatically by operation of law and because plaintiffs present no reason why a separate court order is necessary, plaintiffs' request is unsupported by any good cause to grant the requested order. Also, plaintiffs present no evidence as to any payments made toward the principal damages which would impact the amount of post-judgment interest. For these reasons, the request for an order awarding post-judgment interest is denied without prejudice.

Based on the foregoing, the unopposed motion is granted in part. Plaintiffs are awarded attorneys' fees in the amount of \$102,492 and costs of \$8,706.42. The motion is otherwise denied.

Motion for Charging Order

Plaintiffs and judgment creditors move for a charging order against the transferable interest of defendant and judgment debtor Peter Saetes pursuant to Corporations Code section 17705.03 and Code of Civil Procedure section 708.310. More specifically, plaintiffs seek a charging order against Mr. Saetes' member interests in two limited liability corporations: Sierra College Brace 18, LLC and Darkhorse Estates, LLC. John Manikas, who is no longer a party to this action having been dismissed on June 17, 2025,

opposes the motion to the extent it seeks to encumber, charge, or recover any of the judgment from his member interest. Plaintiffs' reply clarifies the motion pertains only to the member interests of defendant Saetes.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. Since then, plaintiffs filed proofs of service on June 16, 2026 showing mailed service to defendant Saetes.

“If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section . . . 17705.03 of the Corporations Code.” (Code Civ. Proc., § 708.310.) Corporations Code section 17705.03 authorizes the court, on application of a judgment creditor, to “enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.” (Corp. Code, § 17705.03, subd. (a).) To effectuate a charging order, the court may appoint a receiver of the distributions subject to the charging order or make all other orders necessary to give effect to the charging order. (*Id.* at subd. (b).) “The court may appoint a receiver to enforce the judgment where the judgment creditor shows that, considering the interests of both the judgment creditor and the judgment debtor, the appointment of a receiver is a reasonable method to obtain the fair and orderly satisfaction of the judgment.” (Code Civ. Proc., § 708.620.)

Here, plaintiffs present evidence, and a review of the court file confirms, that they are the prevailing parties in this action and the judgment creditors and defendant Saetes is the judgment debtor. Plaintiffs present evidence Saetes is a managing member of Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Plaintiffs argue that because Saetes is a managing member of both limited liability companies, the court must appoint a receiver and cite to Corporations Code section 17705.03(b)(2). However, the cited source—summarized in the paragraph above—does not support plaintiffs' claim that the court “must” appoint a receiver. Plaintiffs submit insufficient evidence to support that appointment of a receiver is necessary or would even be helpful at this stage.

Based on the foregoing, the motion for charging order is granted against defendant Saetes' member interests in Sierra College Brace 18, LLC and Darkhorse Estates, LLC. The motion for appointment of a receiver is denied without prejudice.

12. S-CV-0055573 Moore, Rachella v. CRIBL Inc.

Defendant's motion for protective order

The motion is dropped in light of the moving party's request.

13. S-CV-0056373 City of Lincoln v. Shelgren, Christian A

Petition for order to abate substandard building; appointment of receiver; requiring reimbursement

Petitioner seeks a court order to abate substandard building; order to appointment of receiver; and an order requiring reimbursement.

The court previously twice continued the matter for insufficient notice of hearing on interested parties and lack of proper proof of service of summons for the respondent. After the two continuances, petitioner sent notice of hearing to all interested parties and filed proper proof of service for the respondent property owner.

The motion on the petition to abate substandard building, appoint receiver, and require reimbursement is granted. The court finds notice was properly given to respondent and interested parties and the factors in Health and Safety Code section 17980.7, subdivision (c) support the appointment of a receiver. (Health & Safe. Code, §§ 17980.6, 17980.7, subd. (c).) The court incorporates by reference the findings outlined in the proposed receivership order lodged with the court on October 24, 2025.

14. S-CV-0056993 Stepanov, Ivan v. Uren, Brittany Leann

The demurrer to the second cause of action of the complaint is dropped as moot in light of the dismissal of the second cause of action of the complaint filed on May 7, 2026.

15. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in Department 32 by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Injunction

Plaintiff moves for a preliminary injunction against defendant Selene Finance LP ("Selene") pursuant to Code of Civil Procedure sections 526 and 527. Specifically, plaintiff seeks a court order requiring defendant to pay all homeowner's insurance premiums from plaintiff's escrow account, to refrain from collecting or demanding monthly mortgage payments in excess of the agreed-upon amounts, and to refrain from initiating or advancing any foreclosure-based proceedings. Defendant Selene opposes the motion.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, "the court must consider whether the party seeking the injunction is

likely to prevail on the merits” and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

The current operative pleading is the first amended complaint, which is not verified, and alleges against Selene claims for breach of independent servicing obligations, declaratory relief, accounting, injunctive relief, violation of the Real Estate Settlement Procedures Act (12 U.S.C., § 2605), unjust enrichment, negligent servicing, and breach of the implied covenant of good faith and fair dealing. In support of the motion, plaintiff submits his declaration with several exhibits. Plaintiff declares his lender and initial loan servicer LoanDepot LLC (not a party to this motion), at the outset of the mortgage agreement, immediately began demanding and collecting monthly payments in excess of their agreement and failed to make insurance payments from an escrow account. Plaintiff declares defendant Selene assumed loan servicing on February 1, 2026, acknowledged its escrow obligations in its welcome letter, but then failed to timely make insurance payments in violation of Title 12 of the United States Code, section 2605(g). Plaintiff acknowledges Selene has since made payments on both insurance policies which are both current and active, but that they will come up for renewal in October 2026 and May 2027. Plaintiff also declares that Selene continues LoanDepot’s practice of demanding monthly payments in excess of their agreement. Plaintiff also declares he sent Qualified Written Requests to Selene on February 17, 2026 and that while Selene responded on March 18, 2026 and April 23, 2026, both responses were deficient and did not meet the requirements of Title 12 of the United States Code, section 2605(e).

Plaintiff does not provide either of Selene’s responses to his demand letter. Also, plaintiff does not provide the loan agreement between him and LoanDepot. On the record before the court plaintiff falls short of showing a likelihood of success on the merits as to a violation of Title 12 of the United States Code section 2605(g). While plaintiff argues a likelihood of success on the merits as to unjust enrichment, that claim is also based on the premise that Selene is collecting higher monthly payments than the loan agreement with LoanDepot had provided for. Again, as the loan agreement has not been provided the court cannot make this determination.

Based on the foregoing, plaintiff made an insufficient showing as to his likelihood of success on the merits. The court need not and does not reach the second prong of the analysis pertaining to irreparable harm. The motion for preliminary injunction is denied without prejudice.

16. S-CV-0057657 In Re the Petition of Fabiana James

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)
